

23SMCV00149 23SMCV00149

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C08%2F18%2F2026

Source SHA-256: 7d0b3d491303f42e80651b5942ead16c8c20a675f3747b8f9f5899264bee8941

Case Number: 23SMCV00149 Hearing Date: August 18, 2026 Dept: N

TENTATIVE RULING

Defendant Hans Joerg Dau's Motion for Order Deeming Admitted the Truth of Facts and Genuineness of Documents Alleged in Defendant's Requests for Admissions, Set One, Pursuant to Code of Civil Procedure sections [sic] 2033.280 is GRANTED. The matters identified in Defendant Hans Joerg Dau's Requests for Admissions, Set One, are deemed admitted as of the date of entry of this order.

Defendant Hans Joerg Dau's Request for Monetary Sanctions is DENIED.

Defendant Hans Joerg Dau to give notice.

REASONING

Pursuant to Code of Civil Procedure section 2033.280, subdivision (b), a "party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction." The court "shall" grant the motion to deem requests for admission admitted "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Defendant Hans Joerg Dau ("Defendant") served Plaintiff Javier Napoles ("Plaintiff") with his Requests for Admissions, Set One, on January 15, 2026. (Mot., Hancock Decl. ¶¶ 2, 3.) Responses were due on or before February 16, 2026, and defense counsel communicated with Plaintiff to obtain responses after the deadline. (Mot., Hancock Decl. ¶ 3.) To date, no responses have been received. (Mot., Hancock Decl. ¶¶ 2, 3.)

Accordingly, Defendant Hans Joerg Dau's Motion for Order Deeming Admitted the Truth of Facts and Genuineness of Documents Alleged in Defendant's Requests for Admissions, Set One, Pursuant to Code of Civil Procedure sections [sic] 2033.280 is GRANTED. The matters identified in Defendant Hans Joerg Dau's Requests for Admissions, Set One, are deemed admitted as of the date of entry of this order.

Defendant requests \$1,560 in monetary sanctions for the motion. (See Code Civ. Proc., § 2033.280, subd. (c).) Pursuant to Code of Civil Procedure section 2023.040, "[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought." Defendant made no request for sanctions in the notice of motion. For that reason, Defendant Hans Joerg Dau's Request for Monetary Sanctions is DENIED.